

MASTER NON-DISCLOSURE AGREEMENT

CONFIDENTIALITY AGREEMENT — TEMPLATE

Effective Date: [DD/MM/YYYY]

This Master Non-Disclosure Agreement (the “Agreement”) is entered into as of the Effective Date by and between:

Disclosing Party	Receiving Party
Legal Name: [Company / Individual Name] Address: [Full Address] Email: [Email Address] Authorized Representative: [Name / Title]	Legal Name: [Company / Individual Name] Address: [Full Address] Email: [Email Address] Authorized Representative: [Name / Title]

1. Purpose

The parties wish to explore and/or maintain a business relationship concerning [PROJECT / BUSINESS PURPOSE] (the “Purpose”). In connection with the Purpose, either party may disclose certain confidential or proprietary information to the other party.

2. Definition of Confidential Information

“Confidential Information” means any non-public information disclosed by or on behalf of a party, whether written, oral, visual, electronic or otherwise, including business plans, financial information, pricing, customer or supplier information, product plans, software, source code, designs, specifications, processes, know-how, trade secrets, credentials, documents and other information that a reasonable person would understand to be confidential.

3. Exclusions

Confidential Information does not include information that the Receiving Party can demonstrate: (a) is or becomes publicly available through no breach of this Agreement; (b) was lawfully known by the Receiving Party before disclosure; (c) is lawfully received from a third party without a confidentiality obligation; or (d) is independently developed without use of the Confidential Information.

4. Obligations of the Receiving Party

The Receiving Party shall: (a) use Confidential Information solely for the Purpose; (b) protect it using at least reasonable care; (c) disclose it only to employees, contractors, professional advisers or representatives who have a legitimate need to know and are bound by confidentiality obligations; and (d) promptly notify the Disclosing Party of any unauthorized access, use or disclosure reasonably known to it.

5. Compelled Disclosure

If disclosure is required by law, regulation, court order or governmental authority, the Receiving Party may disclose the required portion, provided that, where legally permitted, it gives the Disclosing Party prompt written notice and reasonably cooperates in seeking confidential treatment or protective relief.

6. Ownership; No License

All Confidential Information remains the property of the Disclosing Party. No license, assignment or other intellectual-property right is granted by this Agreement except the limited right to use Confidential Information for the Purpose.

7. Return or Destruction

Upon written request or termination of discussions, the Receiving Party shall, subject to applicable legal or regulatory retention requirements, return or destroy Confidential Information and, upon request, confirm such destruction in writing.

8. Term and Survival

This Agreement begins on the Effective Date and continues until terminated by either party upon [30] days' written notice. Confidentiality obligations shall continue for [3/5] years after the last disclosure, except that trade secrets shall be protected for so long as they remain trade secrets under applicable law.

9. No Obligation to Proceed

Nothing in this Agreement obligates either party to enter into any transaction, partnership, employment relationship or other business arrangement. Each party remains free to discontinue discussions at any time, subject to its obligations under this Agreement.

10. No Warranty

Confidential Information is provided "as is" unless otherwise agreed in writing. Neither party makes any representation or warranty regarding the completeness or accuracy of Confidential Information except as expressly stated in a separate written agreement.

11. Remedies

The parties acknowledge that unauthorized use or disclosure may cause harm for which monetary damages may be inadequate. To the extent permitted by applicable law, the Disclosing Party may seek appropriate equitable or injunctive relief in addition to any other remedies available at law or in equity.

12. Governing Law and Jurisdiction

This Agreement shall be governed by the laws of [STATE / COUNTRY], without regard to conflict-of-law principles. The courts located in [CITY / STATE / COUNTRY] shall have jurisdiction, subject to any mutually agreed dispute-resolution procedure.

13. Notices

Notices under this Agreement shall be sent to the addresses or email addresses stated above, or to any updated address notified in writing. Notices shall be deemed received in accordance with applicable law or the delivery method agreed by the parties.

14. General

This Agreement constitutes the entire agreement between the parties concerning confidentiality for the Purpose and supersedes prior discussions on that subject. Any amendment must be in writing and signed by authorized representatives of both parties. If any provision is held unenforceable, the remaining provisions shall continue in effect. Neither party may assign this Agreement except with the other party's written consent, except where permitted by applicable law in connection with a merger, reorganization or sale of substantially all relevant assets.

15. Signatures

IN WITNESS WHEREOF, the parties have executed this Agreement through their duly authorized representatives.

DISCLOSING PARTY	RECEIVING PARTY
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Name: _____	Name: _____
Title: _____	Title: _____
Signature: _____	Signature: _____
Date: _____	Date: _____

Template note: Replace all bracketed fields before signing. This template is a general drafting starting point and should be reviewed for the applicable jurisdiction and transaction.